

Calendar Line 1-6

Case Name: *Susan & Cadir Lee v. JP Builders et al.*

Case No. 24CV434341

DEFENDANT'S MOTIONS TO COMPEL DISCOVERY RESPONSES in Lines 1-6 as follows:

- Plaintiff Cadir Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Form Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Special Interrogatories, Set Two & Monetary Sanctions
- Plaintiff Cadir Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions
- Plaintiff Susan Lee's Responses to Requests for Production of Documents, Set Two & Monetary Sanctions

BACKGROUND

Defendant served its second set of written discovery on December 12, 2025. Responses were due January 13, 2026. Plaintiffs failed to serve timely responses.

Plaintiffs explain that their failure to respond was due to a calendaring error, wherein Plaintiffs mis-calendared an extension that they had given to Defendants to respond to discovery. The calendaring error occurred in a context where Plaintiffs had provided Defendants with 11 extensions to respond to discovery over a period of 4 months from August to December 2025.

Plaintiffs served initial responses with objections on February 24, 2026. Subsequently, Plaintiffs served amended discovery responses removing the objections on September 1, 2026, fifteen days before the hearing.

LEGAL STANDARD

Code of Civil Procedure sections 2030.290(a) and 2031.300(a) provide that a party who fails to serve timely responses waives all objections to discovery, including those based on privilege and work product protection. If a party to whom the demand for inspection is directed fails to serve a timely response ... (a) The party waives any objection to the demand, including one based on privilege or on the protection for work product.

However, the same statutes provide a mechanism for relief. The statutory provisions permit relief from waiver if (1) the party subsequently serves substantially compliant responses and (2) the failure to timely respond was the result of mistake, inadvertence, or excusable neglect. A party may be relieved from the waiver of objections by failing to serve a timely response to discovery if the party subsequently served a compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. Opp. (1) 4:4-14.

As to monetary sanctions, sections 2030.290(c) and 2031.300(c) provide that the court 'shall impose a monetary sanction' unless the court finds 'substantial justification' or other circumstances make the imposition of sanctions unjust.

ANALYSIS

The motions to compel objection-free responses are moot. Plaintiffs served amended responses removing all objections on September 1, 2026, providing Defendant with the exact

relief it seeks. Plaintiffs assert that any issue concerning whether Plaintiffs had the right to assert objections within the responses is now moot.

The court agrees. The purpose of a motion to compel initial responses is to obtain discovery responses without objections. Plaintiffs have now provided such responses. While Defendant is correct that Plaintiffs initially waived all objections by missing the January 13, 2026 deadline, and that the initial February 24, 2026 responses improperly included objections, those issues have been resolved by Plaintiffs' service of objection-free amended responses. No further order is necessary or appropriate as to the substance of the discovery.

Even if the court were to address the merits, Plaintiffs would be entitled to relief from waiver under sections 2030.290(a) and 2031.300(a). The statutory requirements are satisfied.

First, Plaintiffs served substantially compliant responses. They initially responded on February 24, 2026, and served objection-free amended responses on September 1, 2026. Plaintiffs represent that they had not stood on any objection, but provided diligent, meaningful, and complete substantive responses to each and every request. This distinguishes the case from situations where a party serves only evasive responses or stands solely on objections.

Second, the failure resulted from mistake, inadvertence, or excusable neglect. The calendaring error occurred after Plaintiffs had provided Defendants with 11 extensions to respond to discovery over a period of 4 months from August to December 2025. The complexity of tracking multiple extension dates supports a finding of excusable neglect, particularly where the overall pattern demonstrates cooperative discovery conduct rather than obstruction.

Defendant cites *City of Fresno v. Superior Court*, 205 Cal. App. 3d 1459, 1466-1467 (1988), for the proposition that counsel's mistake of law on the timing of the response was not a valid ground for relief from waiver of privilege objections. That case is distinguishable. There, counsel misunderstood the legal requirements for when responses were due. Here, Plaintiffs' error was a calendaring mistake in tracking extension dates, not a misunderstanding of the legal standard. The context—having provided 11 extensions over four months—demonstrates good faith rather than gamesmanship.

MONETARY SANCTIONS

Some monetary sanctions are warranted. Plaintiffs indisputably failed to serve timely responses, necessitating Defendant's filing of these motions. The 42-day delay from January 13 to February 24, 2026, imposed costs on Defendant that must be compensated.

However, the requested amount of \$12,060 for six motions (\$2,010 per motion, reflecting 8 hours of combined attorney and paralegal time per motion) is excessive and must be substantially reduced.

First, the motions are substantially identical. Plaintiffs correctly observe that a review of each of the motions demonstrates that the facts set forth therein are virtually identical and the motions themselves only required minor edits changing the plaintiff's name, statutory citations, and the specific type of discovery. Defendant's claim of 64 total hours cannot be reconciled with the reality that after drafting the first motion, the remaining motions required only ministerial changes to party names and discovery type.

Second, no separate statement was required. Where a party fails to respond to discovery, the propounding party need not file a separate statement. This eliminates the most time-consuming component of discovery motions, yet Defendant's fee request does not reflect this reduced burden.

Third, Plaintiffs' conduct demonstrates cooperation rather than obstruction. Plaintiffs provided Defendants with 11 extensions to respond to discovery over a period of 4 months. Opp. and when the calendaring error was discovered, they immediately served substantive responses and subsequently removed all objections. The discovery at issue was voluminous—Special Interrogatory Nos. 138 to 225, Requests for Production Nos. 100 to 165, Requests for Admission Nos. 18 to 26, and the corresponding Form Interrogatory No. 17.1—and Plaintiffs provided complete answers, not evasive ones. This context supports finding circumstances making full sanctions unjust under sections 2030.290(c) and 2031.300(c).

Fourth, the purpose of sanctions is compensatory, not punitive. Plaintiffs cite *City of Los Angeles v. Pricewaterhousecoopers, LLP*, 17 Cal. 5th 46, 75 (2024), for the principle that Discovery sanctions are designed to accomplish the objects of discovery, not to impose punishment. Plaintiffs ultimately provided the discovery sought, accomplishing the objects of discovery. The sanctions should compensate Defendant for reasonable expenses in bringing these motions, not punish a calendaring mistake.

A reasonable sanction reflects the actual work required: substantial time for drafting the first motion (researching the law, drafting the memorandum and declaration, preparing exhibits), minimal time for conforming the remaining five motions (changing names and discovery type), and filing fees. At Defendant's stated rates of \$300 per hour for attorney time and \$150 per hour for paralegal time Mot. to Compel (1) 14:8-12, a reasonable award is:

➤ First motion: 5 hours attorney time =	\$1,500
➤ Remaining five motions: 4 hours total attorney time =	\$1,200
➤ Paralegal time across all six motions: 3 hours =	\$450
➤ Filing fees: 6 motions × \$60 =	\$360
Total:	\$3,510

Plaintiffs cite *Cornerstone Realty Advisors, LLC v. Summit Healthcare etc.*, 56 Cal. App. 5th 771, 791 (2020), for the principle that a court has discretion to reduce the amount of fees and costs requested in order to reach a reasonable award. The court exercises that discretion to award the above in sanctions, reflecting the compensatory purpose of sanctions while recognizing the circumstances making full sanctions unjust.

DISPOSITION

The motions to compel responses to Form Interrogatories, Special Interrogatories, and Requests for Production of Documents are DENIED AS MOOT.

Monetary sanctions are GRANTED in the reduced amount of \$3,210.00 total, payable by Plaintiffs Susan Lee and Cadir Lee and their counsel of record, Rossi Domingue LLP, jointly and severally, to Defendant JP Builders, Inc., within 30 days of this order.

Defendant to prepare the final proposed order, accompanied by the necessary EFS-020 Form, within 7 days of the hearing.

**COUNSEL TO APPEAR ON 9/16/26 TO INDICATE THE STATUS OF THE
UPCOMING 9/18/26 MOTIONS OR IF THEY MAY BE TAKEN OFF CALENDAR.**

- 00000 -

Calendar line 9

Case Name: *Yen Lucero v. Ha Vu Le Dao, et al.*

Case No.: 26CV483739

**MOTION TO QUASH OR IN THE ALTERNATIVE, MODIFY SUBPOENA DUCES
TECUM OF DEFENDANT'S KHOI NGUYEN TRUONG AND HIEN VAN DAO;
REQUEST FOR PROTECTIVE ORDER**

BACKGROUND

Plaintiff Yen Lucero filed this action seeking to avoid allegedly fraudulent transfers and obtain related relief. The complaint alleges that Defendant, HA VU LE DAO, (“Judgment Debtor”), is the judgment debtor in the related case, Yen Lucero V. Ha Vu Le Dao & Walter Nguyen, Santa Clara County Superior Court Case No. 21CV375921. Plaintiff obtained a judgment that was duly entered in favor of Plaintiff and against Judgment Debtor in the amount of \$69,200.95, plus accruing interest and costs as of on October 25, 2024.

The complaint further alleges that on or about March 10, 2025 (hereinafter 'the Transfer Date'), Defendants Nguyen and Dao purchased real property located at 536 Cinnamon Dr, San Jose, CA 95111 (hereinafter 'the Subject Property'), for a purchase price of \$725,000.00, with a substantial down payment of \$425,000.00. Plaintiff alleges that the judgment debtor made substantial cash withdrawals from her bank accounts, and/or transferred funds to Defendant Nguyen, Defendant Dao, or other entities, which funds were used, in whole or in part, to fund the \$425,000.00 down payment for the Subject Property.

On May 5, 2026, plaintiff served Notices to Consumer and Deposition Subpoenas for Production of Business Records directed to financial institutions, including Wells Fargo Bank, JP Morgan Chase, and Bank of America seeking extensive banking and financial records concerning Hien Van Dao and Khoi Nguyen Truong. The subpoenas seek records dating from January 1, 2019 through the present, including all monthly account statements, wire transfers, deposits exceeding \$5,000, cashier's checks, loan applications, and financial statements.

Defendants timely filed this motion as overbroad, invasive, and premature. No opposition has been filed.

LEGAL STANDARD

Code of Civil Procedure section 1987.1 provides that a court may make an order quashing a subpoena entirely, modifying it, or directing compliance with it upon such terms or conditions as the court shall declare, including protective orders. The court may in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification, or that one or more of the requirements of the subpoena was oppressive.

Code of Civil Procedure section 1987.2 governs subpoenas for personal records maintained by third parties and requires that notice be given to the consumer whose records are sought. When